

Opinion of the Court

the Sixth Circuit believed, appeal an order denying summary judgment after a full trial on the merits?¹ Our answer is no. The order retains its interlocutory character as simply a step along the route to final judgment. See *Cohen v. Beneficial Industrial Loan Corp.*, 337 U. S. 541, 546 (1949). Once the case proceeds to trial, the full record developed in court supersedes the record existing at the time of the summary-judgment motion. A qualified immunity defense, of course, does not vanish when a district court declines to rule on the plea summarily. The plea remains available to the defending officials at trial; but at that stage, the defense must be evaluated in light of the character and quality of the evidence received in court.

When summary judgment is sought on a qualified immunity defense, the court inquires whether the party opposing the motion has raised any triable issue barring summary adjudication. “[O]nce trial has been had,” however, “the availability of official immunity should be determined by the trial record, not the pleadings nor the summary judgment record.” 15A C. Wright, A. Miller, & E. Cooper, *Federal Practice & Procedure* §3914.10, p. 684 (2d ed. 1992 and Supp. 2010). After trial, if defendants continue to urge qualified immunity, the decisive question, ordinarily, is whether the evidence favoring the party seeking relief is legally sufficient to overcome the defense. See Fed. Rule Civ. Proc. 50(a), (b) (stating conditions on which judgment may be granted as a matter of law).

In the case before us, the Court of Appeals, although purporting to review the District Court’s denial of the prison

¹ Compare, e. g., *Black v. J. I. Case Co.*, 22 F. 3d 568, 570–571 (CA5 1994) (declining to review denial of summary judgment after trial); *Price v. Kramer*, 200 F. 3d 1237, 1243–1244 (CA9 2000) (no exception where summary judgment rejected assertion of qualified immunity), with *Goff v. Bise*, 173 F. 3d 1068, 1072 (CA8 1999) (denial of summary judgment based on qualified immunity reviewable after trial on the merits); 316 Fed. Appx. 449, 453 (CA6 2009) (case below) (same).